

Independent Sales Contractor Agreement

Date: _____

On behalf of Apps on Demand LLC ("Company"), operator of NexCort iQ, we are pleased to extend this Independent Sales Contractor Agreement ("Agreement") for you to join our Commission Sales Team as an Independent Sales Contractor.

NexCort iQ is a next-generation operational intelligence platform built for 911 centers, emergency communications centers, campus safety organizations, and venue security operations. Our mission is to deliver intelligence at the speed of response, enhancing operations without replacing the professionals who protect communities every day.

This Agreement governs the terms under which you will represent NexCort iQ in the marketplace, develop new business relationships, and earn commission-based compensation based on closed and collected contracts.

1 • Role & Market Focus

You are engaged as an Independent Sales Contractor responsible for identifying, qualifying, and closing new customer accounts for NexCort iQ. Your authorized market focus will include one or more of the following verticals as agreed between the parties:

- Core — 911 Centers, Emergency Communications Centers, Public Safety Answering Points (PSAPs)
- Campus — University public safety, campus security, K-12 safety programs
- Venue — Sports arenas, entertainment venues, convention centers, hospitality security
- Transit — RC Transit brings NexCort iQ's QR, NFC, and SMS incident reporting to public transportation, giving riders and staff a no-app way to report safety concerns directly to transit security in real time.

2 • Responsibilities

- Identify, qualify, and develop new prospect relationships within authorized verticals
- Execute outreach, discovery calls, product demonstrations, and proposal delivery
- Manage pipeline activity in the Company-designated CRM system
- Submit a weekly pipeline and activity report to the CRO or designated sales lead
- Represent NexCort iQ professionally, consistent with brand standards and approved messaging
- Coordinate with internal teams on scoping, proposal review, and contract execution
- Obtain Company approval before making pricing commitments, contract modifications, or agreements with prospects
- Participate in regular sales team calls, training sessions, and onboarding briefings

3 • Commission Compensation

Contractor will earn commission-based compensation on new, first-year collected contract revenue closed under this Agreement. The Company provides no salary, base pay, draw, or guaranteed minimum compensation. Commission is the Contractor's sole compensation unless the Company approves additional arrangements in writing.

3a • Reverse Marginal Commission Schedule

Commission is calculated using a Reverse Marginal Commission Schedule. Each tier rate applies only to the portion of Annual Contract Value (ACV) that falls within that tier — not to the total contract. This structure ensures that every additional dollar closed always increases the Contractor's total commission. There are no cliff penalties; crossing a tier boundary never reduces earnings.

Annual Contract Value (ACV) Tier	Commission Rate
First \$10,000	20%
\$10,001 – \$50,000	17.5%
\$50,001 – \$100,000	15%
\$100,001 – \$250,000	12.5%
Above \$250,000	10%

3b • Commission Calculation Example

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Example — \$200,000 Annual Contract Value:

- $\$10,000 \times 20\% = \$2,000$
- $\$40,000 \times 17.5\% = \$7,000$ (the \$10,001–\$50,000 tier)
- $\$50,000 \times 15\% = \$7,500$ (the \$50,001–\$100,000 tier)
- $\$100,000 \times 12.5\% = \$12,500$ (the \$100,001–\$250,000 tier)

Total Commission: \$29,000 (14.5% effective rate)

Commission reference schedule for common contract sizes:

Annual Contract	Commission Earned	Effective Rate
\$8,000	\$1,600	20.0%
\$10,000	\$2,000	20.0%
\$25,000	\$4,625	18.5%
\$50,000	\$9,000	18.0%
\$75,000	\$12,750	17.0%
\$100,000	\$16,500	16.5%
\$150,000	\$22,750	15.2%
\$200,000	\$29,000	14.5%
\$250,000	\$35,250	14.1%
\$500,000	\$60,250	12.1%
\$1,000,000	\$110,250	11.0%

3c · Scope, Eligibility & Calculation Basis

- Commission applies to first-year Annual Contract Value (ACV) only on new accounts originated by the Contractor.
- ACV is calculated on collected revenue — commissions are earned when the Company receives payment, not at contract signature.
- Multi-year contracts: Commission is paid on Year 1 ACV only. Renewals, expansions, and upsells on existing accounts are subject to a separate written renewal commission policy.
- Pilot or evaluation contracts: Commission applies to the full ACV of any pilot that converts to a paid commercial agreement.
- Accounts must be registered in the CRM prior to proposal delivery to be eligible for commission. Unregistered accounts are not eligible for commission attribution.
- Split deals: If multiple Contractors contribute to a single close, commission will be split proportionally as agreed in writing before deal close.

3d · Payment Terms

- **W-9 Requirement.** No commission payment will be issued until the Contractor provides the Company with a completed and signed IRS Form W-9. Contractor must submit an updated W-9 promptly if any information changes (name, address, tax classification, or TIN).
- Commissions are paid within 30 days of the Company's receipt of cleared contract payment from the customer.
- Contractor is responsible for invoicing the Company for earned commissions within 10 business days of the qualifying payment event.
- All payments are made via ACH, check, or Zelle as agreed. The Company does not advance commissions before customer payment.
- Chargebacks: If a customer cancels, disputes, or reverses payment within 90 days of the qualifying payment date, the Company may recover previously paid commission on the reversed amount by offsetting it against future earnings.

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4 · Independent Contractor Relationship

Contractor is engaged as an independent contractor and not as an employee, officer, partner, agent, joint venturer, or legal representative of the Company. This Agreement does not create an employment relationship under any federal, state, or local law.

- Contractor has no authority to bind the Company, execute agreements, make pricing commitments, or represent that Contractor has authority to act for the Company, except as specifically authorized in writing.
- **1099-NEC Reporting.** The Company will issue IRS Form 1099-NEC to Contractor by January 31 of the year following any calendar year in which aggregate payments of \$599 or more are made under this Agreement, in accordance with applicable IRS reporting requirements. Contractor is responsible for all federal, state, and local income taxes, self-employment taxes, insurance, permits, licenses, and other obligations arising from compensation received under this Agreement.
- Contractor is not eligible for Company employee benefits, paid leave, workers' compensation coverage, unemployment insurance, or other employee programs.
- Contractor will determine the manner and means of performing sales activities, subject to agreed deliverables, brand standards, compliance requirements, and reasonable coordination with Company leadership.

5 · Conduct, Compliance & Brand Standards

- Contractor will represent NexCort iQ professionally, ethically, and in a legally compliant manner at all times.
- Contractor must use only Company-approved sales materials, pricing, product descriptions, and capability statements.
- Contractor may not make representations about product capabilities, timelines, integrations, or roadmap commitments not authorized in writing by the Company.
- Contractor must comply with all applicable laws, including without limitation the Computer Fraud and Abuse Act, CAN-SPAM Act, TCPA, and applicable state telemarketing laws.
- Contractor must not engage in deceptive, high-pressure, or otherwise unlawful sales practices.
- Contractor must disclose any real or potential conflict of interest to the Company in writing within 10 days of becoming aware of it.

6 · Confidentiality

Contractor agrees to maintain strict confidentiality of all non-public information relating to NexCort iQ, including but not limited to:

- Customer names, contacts, contract terms, and pipeline information
- Pricing schedules, commission structures, and financial data
- Product roadmaps, technology architecture, and system configurations
- Proprietary processes, business strategies, and investor information
- Any information designated as confidential or that a reasonable person would understand to be confidential

Confidentiality obligations survive termination of this Agreement for a period of three (3) years from the date of disclosure. The confidentiality obligations in this Section supplement and do not replace the Company's standard Non-Disclosure Agreement, which Contractor must execute as a condition of this Agreement.

7 · Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months following termination, Contractor agrees not to:

- Directly solicit, recruit, or encourage any employee, contractor, or advisor of the Company to terminate their relationship with the Company
- Solicit or accept business from any NexCort iQ customer or active prospect that Contractor directly engaged during the term of this Agreement, on behalf of a competing platform or product

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For purposes of this section, "competing platform" means any product or service that directly competes with NexCort iQ's public safety, emergency communications, campus safety, or venue operations intelligence products.

8 · Intellectual Property

All sales materials, proposals, presentations, scripts, CRM entries, customer data, and other work product created by Contractor in connection with NexCort iQ are the exclusive property of Apps on Demand LLC. Contractor assigns all right, title, and interest in such work product to the Company upon creation.

Contractor retains no license to use the NexCort iQ name, brand, logo, or trademarks following termination of this Agreement.

9 · Term & Termination

- This Agreement commences on the date of execution and continues on an at-will basis unless terminated by either party.
- Either party may terminate this Agreement with fourteen (14) days' written notice, or immediately for cause.
- "Cause" includes material breach, fraud, misrepresentation, violation of applicable law, unauthorized use of Company data or IP, or conduct materially harmful to the Company's reputation or relationships.
- Upon termination, Contractor will earn commissions on contracts where (a) the customer has signed a binding agreement, AND (b) the Company has received full first-year payment, within 60 days of the termination date.
- Pipeline leads, prospects, and customer relationships developed during the term become Company property upon termination. Contractor will promptly return or destroy all confidential materials.

10 · Limitation of Liability

The Company's total liability to Contractor under this Agreement shall not exceed the total commissions paid to Contractor during the three (3) months immediately preceding the event giving rise to the claim. The Company is not liable for lost profits, lost business opportunities, or consequential damages of any kind.

11 · Governing Law & Dispute Resolution

This Agreement is governed by the laws of the State of Wyoming, without regard to conflict-of-law principles. Any dispute arising under or relating to this Agreement will be resolved first through good-faith negotiation, then through binding arbitration under the rules of the American Arbitration Association (AAA), conducted in Columbus, Georgia, or virtually by mutual agreement.

12 · General Provisions

- Entire Agreement: This Agreement constitutes the entire agreement between the parties regarding its subject matter and supersedes all prior discussions.
- Amendments: Modifications must be in writing and signed by both parties.
- Severability: If any provision is found unenforceable, the remaining provisions remain in full force.
- No Waiver: Failure to enforce any provision does not waive future enforcement.
- Notices: Notices shall be sent via email with confirmation of receipt, or by certified mail to the addresses provided at execution.

We are excited to have you on the NexCort iQ sales team. Please review this Agreement carefully, sign it, and return it. By signing below, both parties agree to be bound by the terms and conditions set forth herein.

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Although zone assignments are not guaranteed, which NexCort iQ sales zone would you prefer to sell in?

Please select your preferred zone based on the states, markets, and primary opportunities you are most interested in pursuing.

Zone	States	Primary Focus
Zone 1	TX, GA, NC, TN, SC, AL, AR, KS	PSAP/911 + Transit
Zone 2	CA, OH, MI, IN, WI, KY, NE, IA	PSAP/911 + Transit
Zone 3	FL, IL, CO, WA, OR, NV, UT, HI	Campus + Venue + Transit
Zone 4	NY, MD, VA, CT, DE, RI, OK, MS	Campus + Venue + PSAP
Zone 5	PA, NJ, MA, MO, MN, LA, AZ, DC	Campus + Venue + PSAP
Zone 6	AK, ID, ME, MT, NH, NM, ND, SD, VT, WV, WY	Emerging & Expansion Markets

Preferred Sales Zone:

☐ Zone 1 ☐ Zone 2 ☐ Zone 3 ☐ Zone 4
☐ Zone 5 ☐ Zone 6 ☐ No preference

Second Choice: _____

AGREED AND ACCEPTED:

Dr. Jeffrey W. Coleman Jr.
Founder & CEO, Apps on Demand LLC | NexCort iQ
Date: _____

Name:
Independent Sales Contractor
Date: _____